

Full Attorney Consultation Transcript

Participants

- Attorney
 - Client 1: Li Ying Chen-Martinez
 - Client 2: Michael David Johnson
-

1. Opening and intake framing

Attorney:

Good afternoon, Li Ying, Michael. Thanks for coming in. Before we get started, I just want to let you know what we'll be doing today. I'm going to walk through your immigration history, confirm the timeline for the I-751, ask about your marriage and your life together since conditional residence was granted, and then we'll go over what evidence we want to include in the filing. Some of my questions may sound very detailed or even a little personal, but that's normal in this kind of case. The goal is to make sure the petition is complete, consistent, and well documented. Does that sound okay?

Li Ying:

Yes, that sounds good.

Michael:

Absolutely.

Attorney:

Great. And just to confirm, we're here to prepare a **joint I-751 petition to remove the conditions on Li Ying's permanent residence**, correct?

Li Ying:

Yes.

Michael:

That's right.

2. Identity confirmation

Attorney:

Perfect. Let me confirm basic identity information first. Li Ying, can you please state your full legal name exactly as it appears on your green card?

Li Ying:

Li Ying Chen-Martinez.

Attorney:

And your date of birth?

Li Ying:

September 22, 1991.

Attorney:

Country of birth?

Li Ying:

Taiwan.

Attorney:

Okay. Michael, your full legal name?

Michael:

Michael David Johnson.

Attorney:

Date of birth?

Michael:

May 14, 1988.

Attorney:

And you are a U.S. citizen by birth, correct?

Michael:

Yes.

Attorney:

Current address for both of you?

Michael:

1234 Main Street, Springfield, IL 62701.

Attorney:

And you both currently live there together?

Li Ying:

Yes.

Michael:

Yes.

3. Case timing and filing window

Attorney:

Now let's talk about timing, because with the I-751, timing matters a lot. Li Ying, your conditional permanent residence was granted on **November 28, 2023**, correct?

Li Ying:

Yes.

Attorney:

And your conditional green card expires on **November 28, 2025**?

Li Ying:

Correct.

Attorney:

Good. That means your 90-day filing window opens on **August 28, 2025**, and the intended filing date we're working with is **September 15, 2025**. That puts us safely within the filing window, which is exactly where we want to be.

Michael:

Okay, good.

Attorney:

And just to be clear, this is a **joint filing**. You are still married, still living together, and you are not requesting any waiver of the joint filing requirement, correct?

Li Ying:

Correct.

Michael:

Yes, it's a joint petition.

4. Marriage validity and relationship overview

Attorney:

All right. Let's talk about the marriage itself. Are you still legally married as of today?

Li Ying:

Yes.

Michael:

Yes.

Attorney:

Any divorce proceedings, legal separation, annulment, or anything along those lines at any point?

Both: No.

Attorney:

Have you lived apart at any time since Li Ying received conditional residence?

Michael:

No.

Li Ying:

No, we've lived together continuously.

Attorney:

Any serious marital issues that led to one of you moving out temporarily?

Li Ying:

No.

Michael:

No.

Attorney:

And just for the record, was this marriage entered into in good faith, meaning because you intended to build a life together as spouses?

Li Ying:

Yes, absolutely.

Michael:

Yes.

Attorney:

Good. I know that sounds obvious, but USCIS is really looking at whether the marriage was and remains genuine, so I need that clearly established from the beginning.

5. Daily life and shared household

Attorney:

Tell me a little bit about your day-to-day life together. What does a normal week look like in your household?

Michael:

A normal week is pretty routine. We both work, we coordinate groceries and household chores, we eat dinner together most nights, and weekends are usually for errands, seeing friends, or just relaxing at home.

Attorney:

Who tends to handle what around the house?

Li Ying:

We both do things. I probably handle more of the organizing and planning. Michael tends to handle more of the practical things, like paperwork, technical issues, or things that need fixing.

Michael:

That's fair. We split things naturally. It's not like one person does everything.

Attorney:

Who usually cooks?

Li Ying:

Both of us.

Michael:

Yes, both.

Attorney:

Who usually does grocery shopping?

Li Ying:

Usually together, though I often decide what we need.

Michael:

And I usually carry the heavier bags.

Attorney:

That sounds believable enough to me.

6. Residence history and lease documentation

Now let's go over residence evidence carefully. Since November 2023, have you both remained at the same address in Springfield?

Michael:

Yes.

Attorney:

Do both names appear on your lease agreements?

Michael:

Yes.

Attorney:

Walk me through the lease history.

Michael:

We had a lease renewal covering **July 2023 through June 2024**, signed by both of us. Then another renewal for **July 2024 through June 2025**, also signed by both of us. And for the current period beginning in **July 2025**, we have current housing documentation as well.

Attorney:

Excellent. That's exactly the kind of continuity USCIS likes to see. Do you also have utility bills tied to that same address?

Li Ying:

Yes. We have utility records like ComEd, Nicor, and Comcast.

Attorney:

Do those show both of your names, or is one person primary and the other person listed secondarily?

Li Ying:

Some show both names clearly.

Attorney:

That's fine. We'll use the clearest examples. Do you also receive bank statements, insurance records, tax documents, and other official mail at that address?

Michael:

Yes.

Attorney:

Any voter registration records?

Michael:

Attorney:

Yes, I'm registered at that address.

Attorney:

Great. That helps reinforce co-residence.

7. Joint finances

Attorney:

One of the strongest categories of evidence in an I-751 is joint finances. Do you have joint checking and savings accounts?

Michael:

Yes. We have a joint Chase checking account and a joint Chase savings account.

Attorney:

How long have those been active?

Michael:

Throughout the conditional residence period. We have statements from **November 2023 through August 2025**.

Attorney:

And both of you actually use those accounts?

Li Ying:

Yes.

Attorney:

How do you typically handle shared expenses?

Li Ying:

Shared expenses are generally paid from the joint account—rent, utilities, groceries, things like that.

Michael:

Yes, household expenses come out of the joint account.

Attorney:

Do you also maintain any joint credit card accounts?

Michael:

Yes, we have a Chase Sapphire Preferred account with statements covering about two years.

Who uses the card?

Michael:

Both of us.

Attorney:

What kinds of transactions show up on it?

Michael:

Household purchases, restaurants, travel, groceries, and day-to-day spending.

Attorney:

Good. That kind of ordinary shared spending pattern is useful. Do you file taxes jointly?

Michael:

Yes. We filed as **married filing jointly** for both 2023 and 2024.

Attorney:

Excellent. That's very important. Joint tax returns tend to carry significant weight in these filings.

8. Employment and income changes

Attorney:

Let's talk briefly about employment. Michael, what do you do for work?

Michael:

I work in software engineering.

Attorney:

And I understand you received a promotion in **January 2024**?

Michael:

Yes, I was promoted to Principal Software Engineer.

Attorney:

Congratulations. And Li Ying, you do freelance graphic design, correct?

Li Ying:

Yes.

Attorney:

Has that work been stable?

Attorney:

Li Ying:

Yes, and it's grown over time.

Attorney:

And the tax returns reflect that increase in income?

Li Ying:

Yes.

Attorney:

Good. Any major financial issues, unpaid taxes, bankruptcy, separate hidden accounts, or anything unusual that could create questions?

Both: No.

9. Insurance, beneficiaries, and long-term planning

Attorney:

Do you have health insurance together?

Michael:

Yes. Li Ying is covered through my employer's BCBS health insurance plan.

Attorney:

Excellent. That's strong evidence of a shared life. Any life insurance?

Michael:

Yes, and spouse remains the primary beneficiary.

Attorney:

Auto insurance?

Michael:

Yes, State Farm shows both of us as rated drivers.

Attorney:

Any other shared financial commitments or future planning documents?

Michael:

Yes, we applied jointly for a mortgage pre-approval in 2024 because we started looking into buying a home together.

That's a very nice piece of evidence. It shows forward-looking joint intent, not just shared life in the present.

Li Ying:

We also have a shared storage unit lease.

Attorney:

Good. That's another practical-life document we can include.

10. Travel and shared experiences

Attorney:

Now let's talk about travel. I see that you traveled to Taiwan together in **December 2023**. Tell me about that.

Li Ying:

We went there for the holidays to visit my family.

Attorney:

Was that Michael's first time meeting your parents and grandparents in person?

Li Ying:

Yes.

Attorney:

That's meaningful. Do you have records of that trip—tickets, itinerary, passport stamps, photos?

Michael:

Yes, we have travel documentation.

Attorney:

Any other trips together during the marriage?

Michael:

Yes, we've taken domestic trips together as well.

Attorney:

Good. We don't need every dinner receipt from every weekend away, but it helps to show shared experiences over time, especially if they line up with photos and financial records.

Attorney:

11. Photos, social life, and third-party knowledge

Attorney:

Do you have photographs together covering the full conditional residence period?

Michael:

Yes, more than 30 new photos from late 2023 through September 2025.

Attorney:

And those photos show different occasions—ordinary life, travel, family gatherings, holidays, anniversaries?

Michael:

Yes.

Attorney:

Please make sure those are captioned. Date, location, and who appears in the photo if it's not obvious. USCIS officers do not know your family and friends, so context matters.

Li Ying:

Okay.

Attorney:

Do you maintain any social media presence as a couple?

Li Ying:

Yes, some ongoing posts and shared photos.

Attorney:

That's fine. We can include a few representative screenshots. We don't want to overload the file with social media, but a small sample can help.

Attorney:

And I understand you also have affidavits or letters from people who know you as a married couple?

Michael:

Yes. We have updated sworn affidavits from Jennifer R. Cho and Daniel M. Kowalski, and letters from my parents, Robert and Patricia Johnson, and from Li Ying's brother, David Chen.

Attorney:

Do those individuals have actual firsthand knowledge of your relationship?

Michael:

Yes.

Good. That matters. USCIS does not give affidavits the same weight as objective financial or residential evidence, but they can still be useful when they come from people who genuinely know you.

12. Anniversary, family interaction, and ordinary marital life

Attorney:

What did you do for your second wedding anniversary?

Michael:

We had dinner with close friends on June 18, 2024, including Jennifer Cho and Daniel Kowalski.

Attorney:

Nice. Have both of your families remained involved in your life as a couple?

Li Ying:

Yes.

Michael:

Yes.

Attorney:

Do you spend holidays together when possible?

Both: Yes.

Attorney:

Who in the family are you closest to on each side?

Li Ying:

I'm close with my brother and my parents.

Michael:

And I'm close with my parents.

Attorney:

Do they know you as a stable married couple?

Both:

Yes.

Attorney:

13. Children, name changes, and legal issues

Attorney:

Do you have any children together?

Both: No.

Attorney:

Any pregnancy, fertility treatment, adoption plans, or stepchild issues I need to know about?

Both: No.

Attorney:

Any legal name change since adjustment of status?

Li Ying:

No.

Attorney:

Any arrests, citations, domestic incidents, restraining orders, police contact, or criminal issues involving either of you since conditional residence was granted?

Both: No.

Attorney:

Any immigration issues—unauthorized trips, abandoned residence concerns, extended absence from the U.S., or anything like that?

Li Ying:

No.

Attorney:

Any period where either of you told the government, a bank, an employer, or anyone else that you were separated or living at different addresses?

Both: No.

14. Attorney tests credibility with practical questions

Attorney:

I'm going to ask a few practical day-to-day questions. This is not because I doubt you. It's because if USCIS were ever to interview you, the officer may ask simple household questions just to gauge whether the relationship feels real and lived-in.

Li Ying:

Okay.

Attorney:

What side of the bed do each of you sleep on?

Michael:

I sleep on the left.

Li Ying:

And I sleep on the right.

Attorney:

Who usually gets up earlier?

Michael:

Usually I do.

Attorney:

Who is more likely to handle documents and administrative things?

Li Ying:

Michael.

Michael:

Yes, that's probably true.

Attorney:

Who's more likely to organize the home?

Michael:

Li Ying.

Li Ying:

Yes.

Attorney:

What is one long-term goal you're working toward together?

Both:

Buying a home.

Attorney:

That all sounds natural.

15. Client concerns about the process

Li Ying:

Do you think our case is strong?

Attorney:

Based on what you've told me so far, yes. This appears to be a solid **joint I-751 case**. The strongest parts are the continuity: you stayed married, lived together the entire time, filed taxes jointly, maintained joint bank accounts, shared insurance, took trips together, and you have supporting third-party evidence and photos over the full conditional residence period.

Michael:

Do you see any red flags?

Attorney:

At this point, I don't see a major red flag. The bigger issue in a case like this is usually presentation, not substance. We want the packet to be organized, consistent, and easy to review.

Li Ying:

Could we still get called in for an interview?

Attorney:

Yes, it's possible. Even strong cases can be scheduled for interview. But many straightforward joint I-751 petitions are approved without one. If you were interviewed, I'd expect questions about your marriage history, where you live, finances, daily routines, travel, family, and normal household details.

Michael:

So the main thing is to be honest and consistent?

Attorney:

Exactly. In a real marriage case, the truth is usually enough. The filing just needs to reflect that truth clearly.

16. Evidence review strategy

Attorney:

Let me walk you through how I'd want to structure the evidence package.

First, we include the core filing documents:

- signed Form I-751,
- government filing fee,
- copy of Li Ying's green card front and back,
- copy of Michael's U.S. passport biographic page,
- Form G-28 if represented,
- and any photos if required by current instructions.

Then we organize the marriage evidence by category:

1. **Tax evidence**
2. **Banking and financial evidence**
3. **Residential evidence**
4. **Insurance and benefits**
5. **Travel and life events**
6. **Affidavits and letters**
7. **Photographs and social media**

Li Ying:

Should we include every single bank statement?

Attorney:

We should preserve continuity, but we don't always need to flood USCIS with unnecessary volume. If the statements clearly show long-term joint use, we can include a strong representative set or include all monthly statements if the file remains manageable. The key is that there should not be unexplained gaps.

Michael:

And what about photos?

Attorney:

A well-selected set of captioned photos is better than 150 random photos with no context. We want quality, not just quantity.

17. Personal statement development

Attorney:

I also want to talk about your joint personal statement, because that can help tie everything together. It should not sound dramatic or overly polished. It should sound like two real people describing their married life in a straightforward, credible way.

Li Ying:

What kinds of things should be in it?

Attorney:

A few things:

- that your marriage has continued in good faith,
- that you have continued to live together,
- that you renewed your lease,
- that you filed taxes jointly,
- that you manage finances together,
- that Li Ying's work continued to grow,
- that Michael received a promotion,
- that you traveled to Taiwan together to visit family, • that you celebrated your anniversary together,
- and that you're planning to buy a home.

Michael:

So more factual and less emotional?

Attorney:

Exactly. Some warmth is fine, but the statement should be concrete. USCIS officers are persuaded by credible detail, not by exaggerated language.

18. Attorney stress-tests possible weak points

Attorney:

Let me ask this directly: are there any gaps, complications, or facts you're worried about that we haven't discussed yet?

Li Ying:

No.

Michael:

No, nothing major.

Attorney:

Any months where one of you was staying elsewhere for work, family, or travel?

Both: No.

Attorney:

Any significant period where your finances were mostly separate?

Michael:

No.

Attorney:

Any point where your tax filings, bank statements, or lease documents would show different addresses?

Both: No.

Attorney:

Good. Consistency across records is one of the most important things in these cases.

19. Likely attorney summary to clients

Attorney:

So here's how I'd summarize your case: this is a **well-documented joint petition** supported by multiple forms of objective evidence over the full two-year conditional residence period. The marriage appears ongoing and bona fide, and the documentary record reflects shared residence, shared finances, shared obligations, shared travel, and shared long-term planning.

Li Ying:

That's reassuring.

Attorney:

It should be. This is the kind of case where the goal is not to fix a problem. The goal is simply to present the truth well.

20. Closing recommendations

Attorney:

Before we file, I'd want the following:

- final signed I-751,

- clean copies of the green card and U.S. passport page,
 - joint tax returns or ideally IRS tax transcripts,
 - joint bank and savings statements,
 - joint credit card statements,
 - lease renewals covering the full period,
 - utility bills,
 - health and auto insurance records,
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- mortgage pre-approval letter,
 - storage unit lease,
 - travel documentation,
 - affidavits or letters,
 - captioned photos,
 - and a concise joint personal statement.

I also want everything dated clearly and arranged chronologically wherever possible.

Michael:

Makes sense.

Li Ying:

Thank you. That's very clear.

Attorney:

Of course. Overall, I think this is a strong case. As long as we prepare the packet carefully and keep everything consistent, you should be in a good position.

Michael:

Thank you.

Li Ying:

Thank you very much.

Attorney:

You're welcome.